2025 M L D 122

[Lahore (Rawalpindi Bench)]

Before Ch. Abdul Aziz, J

Brigadier (Retired) QAISAR SHAHZAD---Petitioner

Versus

The STATE and another---Respondents

Criminal Misc. No. 3153-B of 2024, decided on 18th October, 2024.

Criminal Procedure Code (V of 1898)---

----S. 497---Penal Code (XLV of 1860), Ss. 420, 468, 471, 408 & 381---Cheating and dishonestly inducing delivery of property, forged document, using as genuine a forged document, criminal breach of trust by a clerk or servant, theft by a servant or clerk from their master's property---Bail, grant of---Accusing was charged for traversing beyond his authority and executing two agreements and in pursuance thereof issued 37 cheques of equivalent amount of Rs.1,46,81,00,000/-----Besides that, petitioner was further saddled with the accusations of having filed a civil suit on the basis of power of attorney, having forged signatures of plaintiff---First Information Report stood registered under multiple provisions for the attributed delinquencies of cheating, forgery and criminal breach of trust---Though initially offence under S.381, P.P.C., was also added but it was deleted during investigation---So far as, the offence under S.468, P.P.C., is concerned, its mischief is attracted when the forgery is committed for the purpose of cheating whereas S.471, P.P.C., is applicable when a forged document is used as genuine---Straightaway, it was observed that neither the agreements nor the power of attorneys (wakalatnamas) had yet been dispatched to handwriting expert for analysis---Admittedly, the agreements dated 25.10.2019 did not contain forged signatures of any person and their credentials were challenged solely on the premise that they were executed by the petitioner without any lawful authority---Beyond everything, it was noticed that the agreement dated 25.10.2019 was executed between "FS" and Brigadier "A" (Retired)---Brigadier "A" signed the document on behalf of a Joint Venture Management Committee ('JVMC')---So far as, petitioner was concerned, he simply countersigned the said agreement and was not even party to it---Though Brigadier "A" signed the said document on behalf of 'JVMC' but neither he was an accused nor witness in the case---Record showed that the civil suit with forged power of attorney of plaintiff was instituted on 21.08.2023, whereas the services of petitioner were terminated on 12.05.2020, a fact badly exposing the allegation of forgery---Offence of S.408, P.P.C., was applied for the issuance of 37 cheques in favour of "FS" but it was noticed that all these cheques pertained to the account of Bahria Town (Pvt. Ltd)---Not a single penny was withdrawn from the account of DHA, thus as a necessary consequence it could be held for the limited purposes of bail that he was having no dominion over the funds statedly disbursed in favour of "FS"---Sections 420 and 471, P.P.C., are bailable in nature and there was no concept of refusal of bail in such offences---On the contrary, though offences under Ss.408 & 468, P.P.C., are non-

bailable but entail punishments upto seven years and due to that reason do not attract the prohibitory clause of S.497, Cr.P.C.---In such like offences, the rule is bail and not jail---Case of prosecution entirely hinged upon the documentary evidence, which was in the possession of the Investigating Agency, thus there was not even a remote possibility of its tampering---Report under S.173, Cr.P.C., to the extent of petitioner stood submitted in Court and petitioner was no more required for the purposes of investigation---Bail was granted to the petitioner, in circumstances.

Subhan Khan v. The State 2002 SCMR 1797; Muhammad Tanveer v. The State and another PLD 2017 SC 733; Saeed Ahmad v. The State 1996 SCMR 1132 and Tariq Bashir and 5 others v. The State PLD 1995 SC 34 rel.

Raja Inaam Ameen Minhas, C. Ehtisham-ul-Haq and Shehryar Shams for Petitioner.

Mian Imran Rahim, DPG for the State.

Irfan Ahmad Khan Niazi for the Complainant.

ORDER

CH. ABDUL AZIZ, J.---Brigadier (Retired) Qaisar Shahzad (petitioner) seeks post arrest bail in case FIR No.255, dated 09.08.2024, registered for offences under sections 420, 468, 471, 408, 381, P.P.C., at Police Station Morgah, District Rawalpindi.

2. Succinctly stated the case of prosecution as it gleans from the crime report is to the effect that Col. (R) Makhdoom Asim Jillani (complainant) was serving in Phase-VI and VII of DHA; that accused Qaisar Shehzad remained posted in DHA from 15.07.2014 to 15.12.2016 and thereafter became CEO of Joint Venture Management Committee (JVMC); that Qaisar Shahzad being CEO of JVMC issued 37 cheques valuing Rs.1,46,8100,000/- to Zeeshan and Brothers without the permission of competent authority; that in order to coverup his corrupt practices, Qaisar Shahzad executed two bogus agreements dated 25.10.2019 for the purchase and possession of land with one Sain Inam, due to which he was terminated from the post of CEO on 12.05.2020; that thereafter the audit was conducted, whereupon Qaisar Shahzad along with Sain Inam and Zeeshan and Brothers was directed to deposit the embezzled amount in the account of DHA; that after the death of Sain Inam on 14.10.2022, Qaisar Shahzad and Zeeshan and Brothers refused to return the embezzled amount; that subsequently Qaisar Shahzad filed a civil suit titled 'Syed Naveed Ahmad v. Fazal Inam Sabir' in the court of Senior Civil Judge, Rawalpindi by filing forged power of attorney (wakalatnama) of Imran Ali Malik Advocate; that thereafter Mehmood Baloch Advocate on the instructions of Qaisar Shahzad withdrew the above mentioned case, hence, instant FIR.

3. Arguments heard, record perused.

4. It is discernible from the tentative review of record that case in hand stands registered for a deceptive transaction in which Brigadier (Retired) Qaisar Shahzad (petitioner), while posted in DHA traversed beyond his authority and executed two

agreements with one Fazal Inam Sabir and in pursuance thereof issued 37 cheques of equivalent amount of Rs.1,46,81,00,000/-. Besides that, Brigadier (Retired) Qaisar Shahzad is further saddled with the accusations of having filed a civil suit titled as 'Syed Naveed Ahmad v. Fazal Inam Sabir' on the basis of power of attorney, having forged signatures of Syed Naveed Ahmad.

5. In the wake of facts mentioned above, record of the case is perused with utmost circumspection and it is noticed that the First Information Report stands registered under multiple provisions for the attributed delinquencies of cheating, forgery and criminal breach of trust. Though initially offence under section 381, P.P.C. was also added but it is informed to have been deleted during investigation.

6. So far as, the offence under Section 468, P.P.C. is concerned, its mischief is attracted when the forgery is committed for the purpose of cheating whereas Section 471, P.P.C. is applicable when a forged document is used as genuine. Straightaway, it observed that neither the agreements nor the power of attorneys (wakalatnamas) have yet been dispatched to hand writing expert for analysis. There is no need to shed light upon the point that forgery can best be determined through the report of hand writing expert but still no step in this regard has been taken by the police. Above all, it is admitted even during arguments that the agreements dated 25.10.2019 do not contain forged signatures of any person and their credentials are challenged solely on the premise that they were executed by the petitioner without any lawful authority. The forgery is defined in Section 463, P.P.C. as making of a false document with intent to cause damage, or to support a false claim. So far as "Making of a false document" is concerned it stands defined in Section 464, P.P.C. and the foregoing provision for the sake of brevity is not being recapitulated in the instant para. The learned DPG and counsel for the complainant were confronted with the question that the questioned transaction comes under which clause of Section 464, P.P.C. but none of them could give any reply rather went speechless. Beyond everything, it is noticed that the agreement dated 25.10.2019 was executed between Fazal Inam Sabir and Brigadier Arshad (Retired). It is equally important to mention here that Brigadier Arshad signed the document on behalf of Defence, Bahria, Habib Rafiq Joint Venture Management Committee (hereinafter referred as DBH JVMC). So far as, Brigadier Qaisar Shahzad (petitioner) is concerned, he simply counter signed the aforementioned agreement and was not even party to it. It is jaw droppingly observed that though Brigadier Arshad signed the aforementioned document on behalf of DBH JVMC but neither he is an accused nor witness in the case. Last but not the least, it is found evincing from record that the civil suit with forged power of attorney of Syed Naveed Ahmad was instituted on 21.08.2023, whereas the services of Brigadier Qaisar Shahzad were terminated on 12.05.2020, a fact badly exposing the allegation of forgery.

7. I have also given considered thought to the applicability of Section 408, P.P.C. in the case. The foregoing provision attracts when the criminal breach of trust is committed by a clerk or servant and it is incumbent upon the prosecution to prove two of its basic ingredients which are entrustment and misappropriation. The offence of Section 408, P.P.C. is applied for the issuance of 37 cheques in favour of

Fazal Inam Sabir but it is noticed that all these cheques pertain to the account of Bahria Town (Pvt.) Ltd. It can inevitably be gathered that not a single penny was withdrawn from the account of DHA, thus as a necessary consequence it can be held for the limited purposes of bail that he was having no dominion over the funds statedly disbursed in favour of Fazal Inam Sabir.

8. It is also important to mention here that Sections 420 and 471, P.P.C. are bailable in nature and there is no concept of refusal of bail in such offences. On the contrary, though offences under sections 408 and 468, P.P.C. are non-bailable but entail punishments upto seven (07) years and due this reason do not attract the prohibitory clause of Section 497, Cr.P.C. In such like offences, the rule is bail and not the jail as is evident from the case laws reported as Tariq Bashir and 05 others v. The State (PLD 1995 SC 34), Subhan Khan v. The State (2002 SCMR 1797) and Muhammad Tanveer v. The State and another (PLD 2017 Supreme Court 733). In such like cases, bail can only be refused if there exists some exceptional ground. The Supreme Court of Pakistan in the case reported as Tariq Bashir and 05 others v. The State (PLD 1995 SC 34) elaborated the exceptional circumstances on the basis whereof the court can withhold the concession of post arrest bail even in the cases not attracting the prohibitory clause of Section 497, Cr.P.C. and the same are being reproduced hereunder:

i. if there is an apprehension of abscondance,

ii. if there is an apprehension of repetition of offence;

iii. if there is an apprehension of tempering with the prosecution evidence.

In order to ascertain the existence of exceptional circumstances in the instant case for withholding the procedural relief of bail from the petitioner a question was raised that whether the petitioner is having any criminal antecedents but the answer was given in negative by the investigating officer Atif SI.

9. Lastly, I am leaned to observe that the case of prosecution entirely hinges upon the documentary evidence, which is in the possession of the investigating agency, thus there is not even a remote possibility of its tempering. In somewhat similar circumstances, the concession of post arrest bail was granted to an accused even in the offences attracting the prohibitory clause by the Supreme Court of Pakistan in case reported as 'Saeed Ahmad v. The State' (1996 SCMR 1132) with the following observations:-

> "As there is no possibility of tampering with the evidence, which is entirely documentary in nature and in possession of the prosecution, in the circumstances, we convert the petition into an appeal and allow it, and grant bail to the petitioner on furnishing one surety in the sum of Rs.50,000/- to the satisfaction of the Deputy Registrar, Supreme Court, Lahore."

It is further informed by the Investigating Officer that 173, Cr.P.C. report to the extent of petitioner stands submitted in the Court and he is no more required for the purposes of investigation and the foregoing fact is an additional ground, permitting

this Court to give effect to the rule, laid down in the case reported as Tariq Bashir and 05 others v. The State (PLD 1995 SC 34), inflexibly in the instant case.

10. For what has been discussed above, this petition is accepted and the petitioner who is found incarcerated since 10.08.2024 is ordered to be released on bail subject to his furnishing bail bonds in the sum of Rs.50,00,000/- with two sureties in the like amount to the satisfaction of the learned trial Court.

11. It is further made clear that if the petitioner causes any hindrance in the smooth flow of trial after being released on bail, complainant will be at liberty to move a petition for cancellation of his bail even before the trial court, the fate of which is to be decided without being influenced from anything observed hereinabove.

JK/Q-5/L Bail granted.

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